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LINE 6

25-CIV-00410

DUJUAN GREEN VS. GENERAL MOTORS, LLC

DUJUAN GREEN
GENERAL MOTORS, LLC

DAVID N. BARRY
RYAN KAY

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d)

CONTINUED FROM 6/30/2026

TENTATIVE RULING:

Plaintiff Dajuan Green's Motion for Attorneys' Fees, Costs and Expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement.

On January 17, 2025, this Song-Beverly case was filed and on October 10, 2025, the parties filed a notice of conditional settlement. The only activity in the court file was a motion for a protective order filed by defendant on May 20, 2025, but this court vacated the hearing and ordered the parties to meet-and-confer to see if they could resolve the motion and the parties did resolve the motion.

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement was reached in this case and plaintiff filed this motion, which defendant has vigorously opposed.

As the prevailing party, plaintiff's counsel are entitled to their attorneys' fees. A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105 (*Reynolds*).) The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies should receive reasonable attorneys' fees. (*Reynolds*, at p. 1111.)

Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on

the case.” (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County where this case is venued. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1095].) This Court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds, supra*, 47 Cal.App.5th at pp. 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.”] (citations omitted)].) This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. Plaintiff does not provide evidence of reasonable rates in San Mateo County, but show they have been awarded the requested hourly rate from judges around the state. Defendant does not object to the hourly rate and the Court, based upon its experience, finds the rates reasonable for a Song-Beverly action in San Mateo County.

As to the reasonableness of the work, this court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424, in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ ” and drew an analogy to private billing practices: “ ‘Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. “In the private sector, ‘billing judgment’ is an important component in fee setting. It is no less important here. Hours that are not properly billed to one’s client also are not properly billed to one’s adversary pursuant to statutory authority.” ’ ” (*Harman v. City and County of San Francisco*, at p. 1310 [quoting *Hensley v. Eckerhart*, at p. 434].) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel’s burden “to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [internal quotations and citation omitted].)

Here, Plaintiff’s counsels’ time entries show 49.10 hours expended for a total of \$27,977.00. (Barry Decl., ¶13, Exh. 2.) Plaintiff has withdrawn the request for time anticipated to be spent on

a Motion to Tax Costs which was not filed, for a reduction of “10.6 hours at Mr. Matera's hourly rate of \$550.00 for a total amount of \$5,830.00.” (Reply, at p. 6:13-14.) Defendant had requested a reduction of 9.6 hours of time for a total of \$5,918.00. (Opp., at p. 7:14.) The actual amount listed on the timesheet as being associated with a Motion to Tax Costs is \$6,468.00, with billing mixed between Mr. Barry’s rate and Mr. Matera’s rate, beginning with an entry to “Review GM’s Motion to Tax Costs” at the top of page 9, and ending with time billed for travel at the bottom of page 10. (Barry Decl., ¶13, Exh. 2.) Plaintiff’s fee award is therefore reduced by \$6,468.00.

Defendant seeks to reduce specific time:

Defendant argues for a reduction of 2.6 hours amounting to \$1,807 in billed time for pre-engagement work, but determining if a client has a meritorious case is compensable and reasonable.

Defendant argues for a reduction of 1.8 hours amounting to \$838.50 in billed time for reviewing a motion for protective order, the fact that the motion was necessary, rather than having a joint agreement, means that plaintiff it is reasonable for plaintiff’s counsel to try to determine how to obtain from this court an order that was as least restrictive as possible. Thus, the time was reasonable.

Defendant argues for a reduction of 2.8 hours amounting to \$1,260.00 in billed time for preparing written discovery requests when there was no need for written discovery because defendant had opted into AB 1755, which requires mandatory disclosures. Plaintiff offers no justification for why discovery was reasonable and the court concludes that it was not reasonable and strikes \$1,200.

Defendant argues for a reduction of 6.9 hours amounting to \$3,795.00 in billed time for vehicle surrender, including travel. The surrender of the vehicle was reasonably necessary to the prosecution of the action, since it was a term of the parties’ settlement agreement. While Defendant argues that attorney travel time is not generally billed to the client, no evidence is offered in support of this argument. This time appears to have been reasonably expended in the prosecution of the action.

Defendant argues for a reduction of 1.7 hours amounting to \$1,500.00 in billed time for client communications. Attorneys have a professional duty to communicate with their clients. The time was reasonable.

Defendant argues for a reduction of 2.1 hours amounting to \$1,263.50 in billed time for clerical and administrative tasks. The time billed for these tasks was typically mixed with attorney tasks. While the time is compensable, (*Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (1985) 172 Cal.App.3d 914, 951; *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187, the court reduces the hourly rate. The court allows the time, but the time is to be billed at \$225.00 per hour, which the court finds is a reasonable hourly rate for the work.

Defendant argues for a reduction of 10.6 hours amounting to \$5,945.00 in billed time for this fee motion. This is primarily based on the presentation of similar fee motions filed by counsel. Yet in light of the failure to reach agreement and the vigorous opposition defendant has made to this motion, the court cannot find that the time was unreasonable.

The court finds the costs reasonable and necessarily incurred.

Defendant shall pay the fees and costs within forty-five days of notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should include the total of the attorneys' fees and costs awarded.

2:00 PM

LINE 7

25-CIV-05213

GENERATION BUILDERS, INC. VS. MICHELLE WHITE, ET AL.

GENERATION BUILDERS, INC.
MICHELLE WHITE

RICHARD LIU
ROBERT S FLETCHER

DEFENDANTS MICHELLE WHITE, ALANA KLEINERMAN, AND LEVIT8 LOUNGE, LLC'S MOTION TO SET ASIDE
DEFAULT

TENTATIVE RULING:

The court GRANTS defendants Michelle White, Alana Kleinerman and Levit8 Lounge, LLC's motion for relief from default.

The answer and cross-complaint attached to the declaration of Robert S. Fletcher is not deemed filed, but shall be filed and served by July 29, 2026.

The parties tried to informally resolve this matter, but thus far those efforts have been unsuccessful. The parties each set forth different factual scenarios regarding the communications, the different lawyers for defendants, and the filing of the default, which default was entered by the court on April 1, 2026.

To the court, at this point, it makes no sense to untangle what exactly happened and assign fault. The court relies on the law of this state that abhors forfeiture so that cases can be tried on the merits. The law favors judgments based on the merits, not procedural missteps. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. "As Justice Mosk put it in *Rappleyea [v. Campbell]* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].)

Plaintiff's counsel probably did think he was getting the runaround. However, the parties had engaged in efforts to resolve the case without litigation and defendants were intending to file the answer and the court finds that the defense position that even though the time to respond had passed, he did not believe that the default would be entered is mistake, inadvertence, surprise or excusable neglect under Code of Civil Procedure section 473, subdivision (b).

Therefore, the court vacates and sets aside the default. The court denied entry of default judgment because of this pending motion so no default judgment needs to be set aside or vacated.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's
